

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND----- X
ANDREW THOMAS,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
ARTHUR TRUSCELLI, Shield No. 691, NYPD POLICE
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,Defendants.
----- X**SUMMONS**

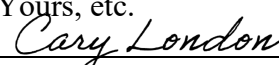
Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Richmond
County as the place of trial.**To the above named Defendants:**

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 17, 2021

Yours, etc.


Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE ARTHUR TRUSCELLI, 1 Police Plaza, Chief of Detectives, Room 1312
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

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ANDREW THOMAS,

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff Andrew Thomas, by his attorneys, Shulman-Hill, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On June 16, 2021, at approximately 5:00 p.m., Plaintiff Andrew Thomas, while lawfully in the vicinity of 78 Richmond Terrace, County of Richmond, State of New York, was subject to an unlawful arrest and detention by defendant Police Officers. Plaintiff was deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802 and his constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Andrew Thomas is a resident of the state of New York.

3. New York City Detective Arthur Truscelli is and was at all times relevant herein an Officer with the New York City Police Department.

4. New York City Detective Arthur Truscelli is being sued in their individual and official capacity.

5. At all times relevant herein, New York City Detective Arthur Truscelli was operating out of the 120th Precinct Detective Squad at the 120th Police Precinct of the NYPD.

6. Currently, New York City Detective Arthur Truscelli is assigned to the Narcotics Bureau of Staten Island, an assignment that maintains a covert location, and therefore consents to service of process via the Legal Department at 1 Police Plaza.

7. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department and/or the New York City Department of Corrections.

8. Officers John Does #1-10 are being sued in their individual and official capacities.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

12. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on October 26, 2021.

13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

16. On June 16, 2021, at approximately 5:20 p.m., Plaintiff presented himself to the 120th Police Precinct in order to surrender himself on a false allegation that he had possessed and or discharged a firearm in May of 2021.

17. Plaintiff had received a phone call a few days prior from a neighbor saying police were at his mother's apartment.

18. Plaintiff, confused and with no idea why police were searching for him, immediately reached out to the 120th Police Precinct.

19. Plaintiff arranged for his surrender the next day at the 120th Police Precinct.

20. Plaintiff was unlawfully arrested at the 120th Precinct when he arrived the next day at around 3PM.

21. Plaintiff had proof that he was not in the City of New York at the time of the alleged incident and tried to inform defendant officers of that fact, but the arresting officers did not listen, pay attention or review his evidence.

22. Plaintiff was fingerprinted and placed into a holding cell at the 120th Precinct.

23. Plaintiff remained at the 120th Precinct until being transported to Central Bookings.

24. While Plaintiff was in custody, the defendant police officers provided the Richmond County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

25. Specifically, the defendant police officers falsely stated to the Richmond County District Attorney's Office that Plaintiff was engaged in Criminal Possession of a Weapon in the 2nd Degree and related offenses involving an incident in May of 2021.

26. Due to the defendant officers' false allegations, the arraigning Judge ordered Plaintiff held on \$150,000 bail.

27. Plaintiff could not make his bail amount and was transported to Riker's Island.

28. While at Riker's Island, Plaintiff was housed in the Otis Bantum Correctional Center ("OBCC"), 5 southwest cell block.

29. At OBCC, Plaintiff was attacked by other inmates.

30. Two inmates jumped Plaintiff and hit him in the mouth.

31. The inmates were only able to do this because defendant John/Jane doe officers were not sufficiently supervising the inmates.

32. Plaintiff suffered serious injury to his mouth necessitating that he go to sick call and receive medical treatment.

33. At Plaintiff's CPL 180.80 date in late June, his bail was reduced by half, as it was impossible for him to have been at the location of the shooting at the time it occurred, just like Plaintiff told his arresting detective.

34. On July 6, 2021, Plaintiff was finally released on his own recognizance, because it was impossible for him to have been at the location of the shooting at the time occurred, just like Plaintiff told his arresting detective.

35. On July 29, 2021, Plaintiff's criminal case in Richmond County was dismissed and sealed because it was impossible for him to have been at the location of the shooting at the time occurred, just like Plaintiff told his arresting detective.

36. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

37. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

38. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, as well as unlawfully fingerprinted, photographed and searched, and unlawfully detained.

39. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.

40. The unlawful arrest and detention by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION**Negligence**

41. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

42. Defendant City, through the Department of Corrections and John/Jane Doe defendants, owed a duty of care to plaintiff to protect him while he was detained at OBCC and failed to do so.

43. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

44. All of the foregoing occurred without any fault or provocation by Plaintiff.

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York who is therefore responsible for their conduct.

46. The City, as the employer of the John and Jane Doe defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

47. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

SECOND CAUSE OF ACTION**Unlawful Stop, Question, and Search**

48. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

49. The illegal stop employed by defendants herein on June 16, 2021, terminated Plaintiff's freedom of movement through means intentionally applied.

50. The conduct of defendants in stopping, questioning and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

51. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights:

Unlawful Seizure and Deprivation of Liberty

54. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

55. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

56. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

False Imprisonment

57. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

58. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

59. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

62. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FIFTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

63. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

64. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

65. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

66. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

69. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

70. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

71. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

72. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

SEVENTH CAUSE OF ACTION**Failure to Intervene**

73. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

74. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

75. Defendants failed to intervene to prevent the unlawful conduct described herein.

76. As a result of the foregoing, Plaintiff's suffered serious, debilitating and permanent injury, his liberty was restricted for an extended period of time, he was put in fear of his safety, his injuries worsened, he did not receive necessary medical treatment, and he was humiliated and subject to other physical constraints.

77. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION**Violation of Fourth And Fourteenth Amendment Rights:****Denial of Right to Fair Trial/Due Process**

81. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

82. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Richmond County District Attorney's Office.

83. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Richmond County District Attorney's Office.

84. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Richmond County District Attorney's Office.

85. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

86. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

88. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

89. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional and psychological injuries.

NINTH CAUSE OF ACTION

Malicious Prosecution

90. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

91. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

92. Defendants commenced and continued a criminal proceeding against Plaintiff.

93. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

94. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

TENTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiff's AC 8-8802 Rights

95. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

96. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

97. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

98. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately one month hours in total.

99. By reason of the acts and omissions by Defendants described above, Plaintiff has endured loss of liberty, physical and emotional injuries and was otherwise damaged and injured.

ELEVENTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-8802 Rights

100. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

101. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

102. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

103. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-8802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

104. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

105. By reason of the acts and omissions by Defendants described above, Plaintiff has endured loss of liberty, physical and emotional injuries and was otherwise damaged and injured.

TWELFTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-8802 Rights

126. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

127. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

128. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

129. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

130. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

131. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately 1 month.

132. By reason of the acts and omissions by Defendants described above, Plaintiff has endured loss of liberty, physical and emotional injuries and was otherwise damaged and injured.

THIRTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8802 Rights

133. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

134. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

135. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

136. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

137. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

138. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8-8802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

139. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

140. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

JURY DEMAND

141. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff Andrew Thomas demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8801 *et seq.*.

Dated: New York, New York
December 17, 2021

By: Cary London
Cary London, Esq.
Shulman-Hill, PLLC

Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

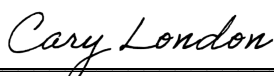
TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE ARTHUR TRUSCELLI, 1 Police Plaza, Chief of Detectives, Room 1312
New York, NY 10038

ATTORNEY'S VERIFICATION

CARY LONDON, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
December 17, 2021



CARY LONDON